



PHOTO SPEED MONITORING DEVICES

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Study Authorization

- The Executive Committee directed staff to examine photo speed monitoring devices (“speed cameras”), with a focus on:
 - Due process;
 - Revenue use;
 - Privacy protections; and,
 - Responsible expansion.
- Staff was also instructed to provide policy considerations.



Virginia Speed Camera Statute

- Speed cameras can be used to issue citations for speeding at least 10 mph over the speed limit in school zones, work zones, and high-risk intersection segments.
- A violation is punishable by up to a \$100 civil penalty.
- Vendors typically mail citations and collect payments on behalf of law enforcement agencies.



Virginia Speed Camera Statute

- Requires notice and an opportunity to contest a citation in court; however, the elements of the offense and burden of proof are different than a traffic infraction.
- A traffic infraction penalizes the driver of the vehicle and requires proof beyond a reasonable doubt.



Virginia Speed Camera Statute

- Presumes that the owner, lessee, or renter of a vehicle was the driver; however, this presumption is rebuttable.
 - The statute does not specify the burden of proof.
 - A civil matter is generally by a preponderance of the evidence.
 - An argument could be made that the statute requires proof beyond a reasonable doubt.
- Speed camera violations are not considered a conviction or made part of a driver's record, and cannot be used for insurance purposes.



Scenario #1

- Lucy's vehicle is observed driving 37 mph in a 25 mph school zone.
 - Stopped by a law enforcement officer and issued a summons.
 - Summons transmitted to the general district court and publicly available on the OES court website.
 - Summons can be prepaid or Lucy can appear in court.
 - If prepaid or convicted, Lucy will have to pay a fine plus court costs.
 - A prepayment or conviction is transmitted to the DMV and points are assessed on Lucy's driver's record, which can be considered by insurance companies and private employers.



Scenario #2

- Sally's vehicle is detected by a speed camera driving 37 mph in a 25 mph school zone.
 - Sally is the only registered owner and is issued a civil citation.
 - Sally pays the \$100 citation directly to the vendor.
 - Information about the citation is not made publicly available or transmitted to the DMV.



Scenario #3

- Linus' vehicle is detected by a speed camera driving 37 mph in a 25 mph school zone.
 - Linus is the only registered owner and is issued a civil citation.
 - Linus had loaned his vehicle to Schroeder.
 - Linus can:
 - Pay the \$100 citation directly to the vendor;
 - File an affidavit with the court stating that he was not the driver; or,
 - Testify in court that he was not the driver.
 - If Linus contests the citation in court, it will be available online and court costs and fees will be assessed if he is found guilty.



Scenario #4

- Charlie and Patty's vehicle is detected by a speed camera driving 37 mph in a 25 mph school zone.
 - The vehicle is registered to both Charlie and Patty, with Charlie's name appearing first on the registration.
 - A civil citation will be issued to Charlie if:
 - Charlie was driving the vehicle;
 - Patty was driving the vehicle;
 - Their children, Snoopy or Woodstock, were driving the vehicle; or
 - Anyone else was driving the vehicle.
 - Charlie can pay the vendor directly or contest the citation.



KEY FINDINGS



Key Findings

- Virginia enacted legislation in 2020 to allow speed camera use in school zones and work zones (Va. Code § 46.2-882.1).
- As of January 2025, 37 law enforcement agencies reported use in school zones and 4 agencies reported use in work zones.
 - 290 devices in school zones; and,
 - 8 devices in work zones.
- The statute was amended in 2024 to authorize use at high-risk intersection segments.
 - No high-risk intersection segment use was reported as of January 2025.



Key Findings

- The number of law enforcement agencies using speed cameras has increased significantly:
 - 2022: 5 agencies (92,062 citations issued)
 - 2023: 13 agencies (326,614 citations issued)
 - 2024: 39 law enforcement agencies (597,085 citations issued)
- An additional 16 law enforcement agencies received speed camera equipment during 2025.
 - Agencies must report use to VSP by January 15th each year.



Key Findings

- Almost \$60 million in civil penalties has been collected from speed camera citations:
 - 2022: \$4.2 million
 - 2023: \$19.9 million
 - 2024: \$33.7 million
- Currently, only local law enforcement agencies are using speed cameras; therefore, revenue is only being paid to localities.
 - No restrictions on how revenue is spent.
 - No requirement to report how revenue is spent.



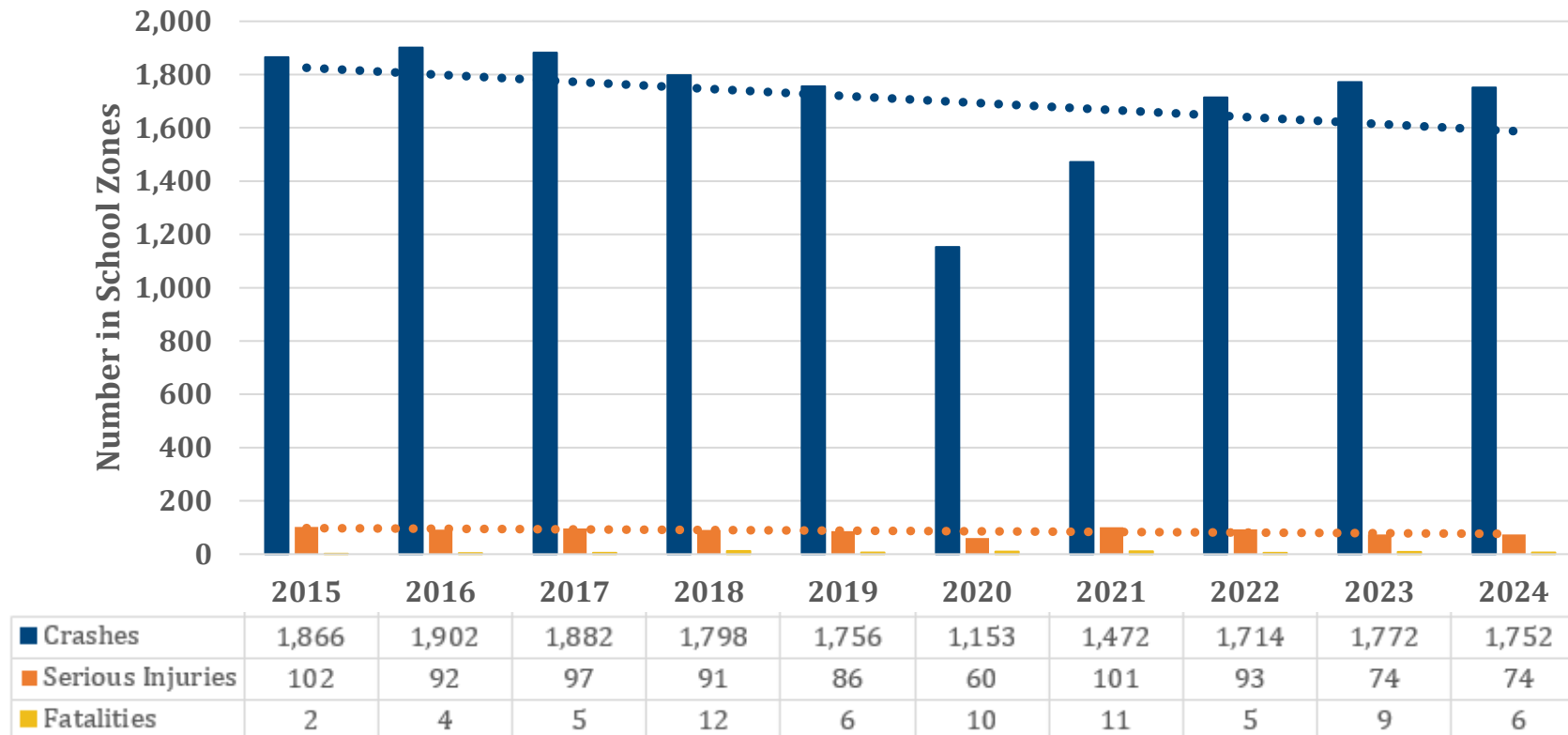
Key Findings

- Research shows that speed cameras can be effective for reducing speed, crashes, and changing driver behavior.
- The impact of speed cameras on highway safety outcomes in Virginia cannot be fully determined due to their recent implementation.



Key Findings

- Motor vehicle *crashes* and *serious injuries* in **school zones** decreased from 2015 to 2024; however, *fatalities* increased.

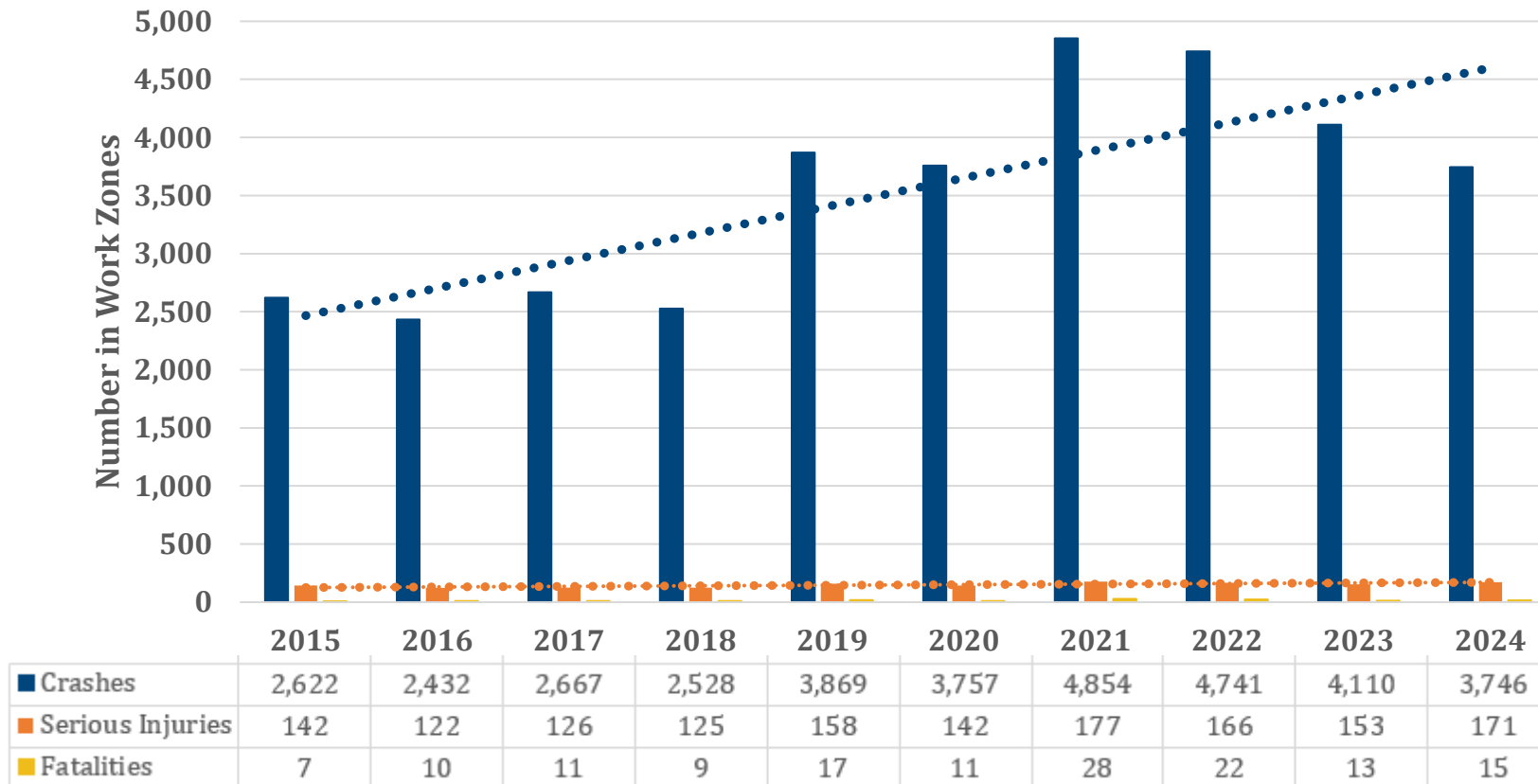


Source: DMV, TREDs, 2015-2024.



Key Finding

- Motor vehicle *crashes, serious injuries, and fatalities* in **work zones** generally increased from 2015 to 2024.



Source: DMV, TREDs, 2015-2024.



Key Findings

- Numerous states have enacted speed camera laws:
 - 29 states, including Virginia, and Washington, D.C., allow use;
 - 10 states ban use; and,
 - 11 states have no statewide laws.
- Speed camera laws vary significantly across the 29 states and Washington, D.C.



Key Findings

- Numerous policy considerations exist if Virginia wants to make changes to its speed camera statute.
- Virginia's automated enforcement statutes are not aligned.
 - Speed cameras, red light cameras, tolls, and school buses.
- Automated enforcement technology is rapidly evolving.
- Measures can be taken to regulate other forms of automated enforcement.



POLICY CONSIDERATIONS



Policy Considerations

- Court Proceedings
- Uniform Citations
- Warning Periods
- Civil Penalty Structure
- Revenue Sharing
- Revenue Limits
- Revenue Uses
- Collections: In-State
- Collections: Out-of-State



Policy Considerations

- Device Placement
- Signage Distance
- Speed Feedback Signs
- Evaluation of Effectiveness
- Public Awareness
- Vendor Approval Process
- Privacy
- Calibration
- Annual Report



Court Proceedings

- Uncertainty exists over whether all speed camera citations must be prosecuted through the court system.
- Prosecuting all citations in court will result in:
 - Resource needs;
 - Case information being viewable online; and,
 - Court costs to the defendant.
- Virginia's statute could be amended to clarify that only contested citations and cases of nonpayment proceed through the court.



Uniform Citations

- Virginia's statute does not require a uniform speed camera citation.
 - Citation formats vary across localities based on the use of different vendors, as well as locality preferences.
- At least 4 states require a uniform citation.
- One state requires an in-state payment and return address on the citation.



Warning Periods

- Virginia's statute does not require a warning period before issuing speed camera citations.
 - Many localities in Virginia implemented a 30 day warning period after placing a speed camera.
- Some states statutorily require warning periods, such as:
 - Warning period for the first 30 days;
 - First violation is always a warning; and,
 - Warning notice that resets after a period of time.



Civil Penalty Structure

- Virginia's statute allows for *up to* a \$100 civil penalty per violation, therefore localities can determine how much to assess.
- Other states have adopted various penalty structures:
 - Flat penalty;
 - Maximum penalty;
 - Escalating penalty based on speed;
 - Escalating penalty based on number of prior violations;
 - Traffic safety course or community service; or,
 - Reduced penalty for lower-income individuals.



Revenue Sharing

- Under Virginia's statute, revenue from citations in school zones and work zones issued by local law enforcement is paid to localities.
- Revenue for citations in school zones and work zones issued by Virginia State Police (VSP) is paid to the Literary Fund.
- Revenue for citations in high-risk intersection segments is paid into the Virginia Highway Safety Improvement Program.
- Virginia could reconsider how this revenue is apportioned.



Revenue Limits

- Virginia's statute does not limit the amount of revenue that a locality can collect from speed camera citations.
- In Maryland, speed camera revenue over 10% of a political subdivision's total revenue for that fiscal year, after deducting program costs, must be remitted to the general fund.
- Pennsylvania law provides that Philadelphia may not collect equal to or greater than 2% of its annual budget in fine revenue from its speed camera use in specified corridors and school zones.



Revenue Uses

- Virginia's statute does not limit how localities spend revenue from civil penalties in school zones and work zones.
- Staff sent an informal survey to localities inquiring about speed camera revenue use which found that some allocate revenue to their general fund, while others fund specific line items, such as speed camera operating expenses, traffic safety initiatives, and law-enforcement personnel and equipment.



Revenue Uses

- Other states vary in how revenue can be allocated:
 - Cannot supplant existing expenditures;
 - Administrative costs;
 - Highway safety infrastructure and education;
 - Highway safety enforcement and training;
 - School programs; or,
 - State general fund.



Collections: In-State

- Virginia's statute does not penalize individuals for failure to pay the civil penalty.
 - A separate Virginia statute allows for in-state collection of civil penalties assessed by a court.
- At least 4 states refuse to register or renew a vehicle registration if the owner has an unpaid speed camera penalty.
- One state suspends a person's driver's license for nonpayment.



Collections: Out-of-State

- Virginia's statute allows for collections of civil penalties against out-of-state drivers, but this poses challenges due to the Driver License Compact.
 - 45 states, including Virginia, and D.C., are part of the Compact.
- The Drivers License Compact does not apply to speed camera violations as set forth in the Virginia Code.
 - Compact states share information on convictions; however, a conviction is defined as a motor vehicle offense prohibited by state law which is required to be reported to the licensing authority.
 - A Virginia speed camera violation is not a conviction and is not reported to the Virginia DMV.



Device Placement

- Virginia is consistent with other states in the placement of speed cameras in school zones (18 other states) and work zones (15 other states).
- Some states allow for use in other specific locations, such as:
 - Pedestrian zones;
 - Residential districts;
 - Parks;
 - Safety corridors or high-risk crash areas;
 - Colleges and universities; or,
 - Hospitals.
- 4 states and D.C. do not restrict use to specific locations.



Device Placement

- Virginia's statute does not include any other placement limits.
- Other states have adopted measures to restrict placement:
 - Requiring other traffic calming measures be adopted first;
 - Limiting the number of devices that can be deployed; or,
 - Mandating equitable disbursement of devices.



Signage Distance

- Per Virginia's statute, "[a] conspicuous sign shall be placed *within 1,000 feet* of any school crossing zone, highway work zone, or high-risk intersection segment at which a photo speed monitoring device is used, indicating the use of the device."
 - This language could allow signage to be placed within less than 1,000 feet of, or even after, a location where a speed camera is in use.
- Virginia's statute could be amended to require signage be placed at least 1,000 feet *before* a location where a camera is in use.



Speed Feedback Signs

- Virginia's statute does not require the placement of speed feedback signs before a speed camera zone.
- Research shows that speed feedback signs are an effective measure to reduce speed.
- Virginia could require that speed feedback signs be placed before a location where a speed camera is in use.



Evaluation of Effectiveness

- Virginia's statute does not require any evaluations to assess the need or effectiveness of a speed camera in a specific location.
- Other states require evaluations, such as:
 - Initial speed study prior to placement;
 - Periodic speed studies after placement; or,
 - Safety data analysis.



Public Awareness

- Virginia's statute does not require any public awareness measures related to the use of speed cameras.
- Other Virginia statutes require public awareness, such as:
 - Red light cameras: public awareness program plus making monthly system function evaluations available to the public; and,
 - ALPR: public awareness program plus the public posting of use policies and reports.



Vendor Approval Process

- Virginia's statute allows law enforcement agencies to contract with private vendors, but does not include a vendor approval process.
 - The Division of General Services (DGS) determines the proper equipment for speed camera use, but not the individual vendor.
- Virginia's ALPR statute requires vendors to certify to DGS that their systems and practices meet statutory criteria.



Privacy

- Virginia's statute includes privacy protections such as:
 - Limiting data collection to what is needed to enforce the statute;
 - Restricting the sharing of data; and,
 - Destruction of data after 60 days of paying the civil penalty.
- Other states have adopted additional privacy measures, such as:
 - Devices cannot be used for surveillance (e.g. ALPR); or,
 - Cameras cannot capture images of drivers or occupants.



Calibration

- Virginia requires speed cameras to be calibrated annually.
 - Speed equipment used by Virginia law enforcement must be calibrated every 6 months, and officers generally test this equipment at the beginning and end of each shift.
- Other states impose various calibration requirements:
 - Annual or semiannual calibration by independent lab;
 - Monthly or bimonthly calibration by trained technician; or,
 - Daily internal calibration.



Annual Report

- Agencies using speed cameras must annually report certain data to VSP by January 15th.
- VSP must annually publish an aggregated report by February 15th.
- Virginia's statute could be amended to require earlier reporting dates so that information is available prior to Session.



Annual Report

- Virginia's statute only requires annual reporting on traffic violations prosecuted, successful prosecutions, and civil penalties collected.
- Some states have additional reporting requirements, such as:
 - Safety objectives and outcomes;
 - Gross and net revenue;
 - Use of revenue;
 - Administrative costs;
 - Violations categorized by speed, repeat offenders, or state license plate of the offending vehicle; or,
 - Number of violations rejected and the reasons.



AUTOMATED ENFORCEMENT



Automated Enforcement

- Speed cameras are just one form of automated enforcement.
- The Virginia Code also allows automated enforcement for:
 - Red light violations;
 - Toll violations; and,
 - Passing a stopped school bus.
- The Virginia statutes that regulate the use of these technologies are not aligned.



Automated Enforcement

- Technology to conduct automated enforcement of other violations is rapidly growing, such as:
 - Stop signs;
 - Pedestrian crossings;
 - Parking;
 - Illegal turns;
 - Bus lanes; and,
 - Oversized vehicles.
- Additionally, autonomous vehicles are now being deployed.



Automated Enforcement

- Virginia could prohibit the use of automated enforcement technology that is not specifically authorized by statute to:
 - Provide time to align the current statutory framework; and,
 - Ensure that new technology can be regulated.
- Legislation related to automated enforcement technology could be referred to the Crime Commission for review.



Summary

- Speed camera use, citations, and revenue collected in Virginia have increased significantly over the past 5 years.
- Numerous policy considerations exist if Virginia wants to make changes to its speed camera statute.
- Measures can also be taken to regulate other forms of automated enforcement.



DISCUSSION